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PROVINCIAL ASSEMBLY OF THE PUNJAB

NOTIFICATION

May 14, 2026

No. PAP/Legis-2(112)/2026/758. The Punjab Protection of Ownership of Immovable Property (Amendment) Bill 2026, having been passed by Provincial Assembly of the Punjab on May 07, 2026, and assented to by Governor of the Punjab on May 14, 2026, is hereby published as an Act of Provincial Assembly of the Punjab.

THE PUNJAB PROTECTION OF OWNERSHIP OF IMMOVABLE PROPERTY (AMENDMENT) ACT 2026

ACT XXXVII OF 2026

[First published, after having received the assent of the Governor of the Punjab, in the Gazette of the Punjab (Extraordinary) dated May 14, 2026.]

An

Act

to amend the Punjab Protection of Ownership of Immovable Property Act 2025.

It is necessary to amend the Punjab Protection of Ownership of Immovable Property Act 2025 (CI of 2025) for the purposes hereinafter appearing.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

1. Short title and commencement.– (1) This Act may be cited as the Punjab Protection of Ownership of Immovable Property (Amendment) Act 2026.

(2) It shall come into force at once.

2. Amendment of section 2 of Act CI of 2025.– In the Punjab Protection of Ownership of Immovable Property Act 2025 (CI of 2025), hereinafter referred to as 'the Act', in section 2:

(a) after clause (a), the following shall be inserted:

"(aa) "accused" means any person and includes a company, corporation, partnership or firm, sole proprietorship, society, trust, a group or body of persons, an association, a religious or charitable institution or endowment or any entity, whatsoever, whether incorporated or not; and in the case of such an accused, the subscriber, promoter, sponsor, member, guarantor, chairman, chief executive, managing director, director, partner, ultimate beneficial owner, manager, secretary, trustee,

governor, sole proprietor, officer, owner or anyone, by whatever name called, or who is in any way in charge of, or is responsible for, or is exercising direction or control of the affairs of such an accused for the conduct of its business, whatsoever;";

(b) in clause (b), for the words "Dispute Resolution", the word "Scrutiny" shall be substituted;

(c) for clause (e), the following shall be substituted:

"(e) "Judge" means the Presiding Officer designated for the Tribunal;";

(d) clause (f) shall be omitted; and

(e) in clause (i), before the word "Tribunal" appearing for the second time, the words "Punjab Property" shall be inserted.

3. Substitution of section 4 of Act CI of 2025.– In the Act, for section 4, the following shall be substituted:

"**4. Illegal possession.**– An accused who, whether himself or through any other accused, obtains or retains possession of any immovable property without lawful authority or lawful means or through fraud, deceit, cheating, dishonesty, forgery, misrepresentation, intimidation, force, coercion or any other illegal means, shall be guilty of an offence, which shall be punished with imprisonment for a term which may extend to ten years but not less than five years or with fine which may extend to ten million rupees or with both.".

4. Substitution of section 5 of Act CI of 2025.– In the Act, for section 5, the following shall be substituted:

"**5. Punishment for attempt, abetment, etc.**– Any person who attempts, aids, abets, facilitates or conspires for the commission of an offence under the Act shall be punished with imprisonment for a term which may extend to three years but not less than one year or with fine which may extend to one million rupees or with both.".

5. Omission of section 6 of Act CI of 2025.– In the Act, section 6 shall be omitted.

6. Substitution of section 7 of Act CI of 2025.– In the Act, for section 7, the following shall be substituted:

"**7. Filing of complaint.**– (1) A complaint for an offence under the Act may be filed by the lawful owner of the immovable property before the Tribunal constituted under section 11 having territorial jurisdiction over the area in which the immovable property is situated.

(2) The complaint shall include:

(a) sufficient particulars to identify the immovable property;

(b) material facts alleged to constitute an offence under the Act;

(c) evidence of lawful title or lawful ownership, as the case may be; and

(d) particulars of the alleged accused, so far as known to the complainant.

(3) Within three days of the receipt of a complaint, the Tribunal shall refer it to the Committee for probe, scrutiny and encouraging and facilitating an amicable resolution thereof and submission of its report within thirty days of referral thereto.".

7. Substitution of section 8 of Act CI of 2025.– In the Act, for section 8, the following shall be substituted:

"**8. Scrutiny Committee.**– (1) For each district, there shall be a Scrutiny Committee which shall consist of:

(a) Deputy Commissioner (Convener);

(b) District Police Officer;

(c) Additional Deputy Commissioner (Revenue);

(d) Assistant Commissioner concerned;

(e) Sub-Divisional Police Officer concerned;

(f) Circle Revenue Officer concerned;

(g) Officer-in-charge of the police station concerned; and

(h) an officer of any agency of the Government, to be co-opted by the Committee.

(2) For the purposes provided in sub-section (3) of section 7, the Committee may:

(a) scrutinize relevant record and afford an opportunity of hearing to the persons concerned;

(b) require attendance of any person and require such person to provide information relevant to the complaint;

(c) call for requisition and examine any record or document from any office of the Government or any public authority;

(d) record statements of persons appearing before it, through the Officer-in-charge of the police station concerned; and

(e) encourage and facilitate an amicable resolution of disputes.

(3) The Officer-in-charge of the police station concerned shall be responsible for, *inter alia*, ensuring attendance of any person, recording of the statement of any person, seizure memos and collecting all the record.

(4) The Committee shall finalize and submit its report along with all relevant record, through the Circle Revenue Officer concerned and Officer-in-charge of the police-station concerned, to the Tribunal, within thirty days from the date of referral of the complaint from the Tribunal:

Provided that the Circle Revenue Officer concerned shall be the focal person to liaise with the Tribunal throughout the proceedings, who shall appear as a witness along with the Officer-in-charge of the police station concerned, for and on behalf of the Committee, and other Members of the Committee shall not be called as witnesses.

(5) In case, the dispute has been amicably resolved, or the parties have arrived at a compromise, the Committee shall reduce it into writing and send the same to the Tribunal for its approval and for passing of judgment and decree thereupon and restoration of possession to the lawful owner on such terms and conditions as to compensation or otherwise as may be deemed appropriate by the Tribunal.

(6) The parties shall appear before the Committee in person:

Provided that if a party is unable to appear in person, the Committee may, on the written request of such party, allow appearance through electronic means subject to his biometric verification.".

8. Substitution of section 9 of Act CI of 2025.– In the Act, for section 9, the following shall be substituted:

"**9. Preventive measures.**– (1) In case, a lawful owner of an immovable property apprehends commission of an offence under the Act, he may file application before the Tribunal, having territorial jurisdiction over the area in which the immovable property is situated, for taking preventive measures.

(2) On receipt of an application under sub-section (1), the Tribunal may summon the parties in person, and after examining the relevant record and hearing the parties, pass such order as it may deem fit and appropriate and such order may include taking reasonable and adequate surety or guarantee from the party concerned or sealing of the property.".

9. Substitution of section 10 of Act CI of 2025.– In the Act, for section 10, the following shall be substituted:

"**10. Interim relief.**– (1) During pendency of the case, the Tribunal may, at any stage, pass any interim order to regulate the possession of the immovable property, and pass such other orders, as it may deem fit and appropriate.

(2) For the purposes of securing compliance with any order made under sub-section (1), the Tribunal may issue appropriate directions to the Officer-in-charge of the police station or authorize any functionary, or officer, or official, or authority of the Government.".

10. Substitution of section 11 of Act CI of 2025.– In the Act, for section 11, the following shall be substituted:

"**11. Punjab Property Tribunal.**– (1) The Government may, by notification in the official Gazette, constitute the Punjab Property Tribunal for each district in the Punjab under the Act, and may, in consultation with the Chief Justice of the Lahore High

Court, designate Judge of the Tribunal amongst the serving Additional Sessions Judges, for all the districts in the Punjab, as it may specify.

(2) An Additional Sessions Judge so designated under sub-section (1) shall exercise exclusive jurisdiction, powers and functions conferred upon the Tribunal by or under the Act.

(3) The Government may constitute more than one Tribunal for a district and, where more than one Tribunal is so constituted, it shall specify the territorial limits within which each of such Tribunal shall exercise its respective jurisdiction under the Act.".

11. Omission of section 12 of Act CI of 2025.– In the Act, section 12 shall be omitted.

12. Substitution of section 13 of Act CI of 2025.– In the Act, for section 13, the following shall be substituted:

"**13. Exclusive jurisdiction of Tribunal.**– (1) Notwithstanding anything contained in any other law for the time being in force, the Tribunal shall have exclusive jurisdiction to try the offences under the Act.

(2) While trying any offence under the Act, the Tribunal may also try any other offence with which the alleged accused may, under the Code of Criminal Procedure, 1898 (V of 1898), be charged, at the same trial if the offence is connected with such other offence.".

13. Omission of section 14 of Act CI of 2025.– In the Act, section 14 shall be omitted.

14. Substitution of section 16 of Act CI of 2025.– In the Act, for section 16, the following shall be substituted:

"**16. Procedure of the Tribunal.**– (1) Upon receipt of the report of the Committee under section 8 of the Act, the Tribunal shall proceed with the matter and try every case arising out of any alleged offence with respect to the ownership, or illegal possession of the immovable property.

(2) Notwithstanding anything contained in any other law for the time being in force, the Tribunal shall also have exclusive jurisdiction to determine the question of title, if any, of the immovable property being subject matter of the case.

(3) Notwithstanding anything contained in any other law for the time being in force, the Tribunal shall have exclusive jurisdiction for the trial of any complainant whose complaint has been found false, frivolous or vexatious and if the complaint is found false, frivolous or vexatious by the Tribunal, the complainant shall be liable to be punished with imprisonment for a term which may extend to five years but not less than one year and fine which may extend to five hundred thousand rupees.

(4) For the purposes of sub-sections (2) and (3) of this section, the Tribunal may, for reasons to be recorded in writing, follow such summary procedure as it may deem appropriate.

(5) The Tribunal shall try the offences under sections 4 and 5 of the Act in accordance with the procedure provided under Chapter XXII-A of the Code of Criminal Procedure, 1898 (V of 1898).

(6) Every case shall be proceeded on a day-to-day basis and decided by the Tribunal within a period of thirty days from the date of receipt of report by the Tribunal and the case shall not be adjourned for any purpose unless such adjournment is, in its opinion, necessary in the interest of justice, and no adjournment shall, in any case, be granted for more than seven days.

(7) The Tribunal may award monetary compensation for wrongful and illegal possession of the immovable property which shall not be less than the value of the immovable property so possessed, as determined in accordance with the valuation table notified under the Stamp Act, 1899 (II of 1899), as on the date of the final judgment and in addition thereto, the Tribunal may order payment to the lawful owner of any profit or gain accrued from such immovable property or any superstructure constructed thereupon, by the accused.

(8) The amount of compensation and profit so awarded and the cost of restoration of possession, if any, shall be recovered as arrears of land revenue.

(9) The Tribunal may, at any stage of the case, order the arrest of any accused for an offence under the Act, through police or an agency or authority of the Government.

(10) Subject to the provisions of the Code of Criminal Procedure, 1898 (V of 1898), no court other than the Lahore High Court shall have the power to grant bail or order release of the accused arrested under sub-section (9).

(11) Where any case involving illegal possession of the immovable property is pending before any court or tribunal, other than the Federal Constitutional Court of Pakistan, Supreme Court of Pakistan or Lahore High Court, a lawful owner may file an application before such court or tribunal for transfer of the said case to the Tribunal and such court or tribunal, after evaluating the record of the case and hearing all the persons concerned, if it is satisfied that the case, prima facie, falls under the exclusive jurisdiction of the Tribunal, shall transfer the said case to the Tribunal:

Provided that such court or tribunal shall decide such application within a period of fifteen days positively.

(12) Upon receipt of a case or proceeding by means of a transfer under sub-section (11), the Tribunal may proceed with the case from the stage at which it was pending before such other court or tribunal, and it shall not be necessary for the Tribunal to re-examine any witness or record any evidence that has already been recorded; however, the Tribunal may refer such case to the Committee for amicable resolution of the matter or for its report, as the case may be, in terms of sections 7 and 8 of the Act.

(13) Upon conclusion of the trial, the Tribunal, if deciding the title or ownership of the immovable property, shall pronounce a judgement and pass a decree accordingly.".

15. Omission of section 17 of Act CI of 2025.– In the Act, section 17 shall be omitted:

16. Substitution of section 18 of Act CI of 2025.– In the Act, for section 18, the following shall be substituted:

"**18. Delivery or restoration of possession to lawful owner.**– (1) Upon conclusion of the proceedings, either through trial or otherwise, the Tribunal shall order delivery or restoration of the possession of the immovable property to its lawful owner if such lawful owner is not already in possession.

(2) For the purposes of sub-section (1), the Tribunal may direct the Officer-in-charge of the police station or any functionary of any other agency or authority of the Government to render such assistance as may be necessary for ensuring the delivery or restoration of possession of the immovable property to its lawful owner.".

17. Substitution of section 19 of Act CI of 2025.– In the Act, for section 19, the following shall be substituted:

"**19. Appeal.**– (1) Any person convicted under the Act, the complainant, or the Public Prosecutor if so directed in writing by the Prosecutor General, Punjab, being aggrieved by the final judgment of the Tribunal including a judgment and decree passed by the Tribunal, may, within thirty days of the date of such judgment or decree, prefer an appeal to the Lahore High Court:

Provided that no appeal or revision shall lie against a judgment or a decree passed under sub-section (5) of section 8 of the Act.

(2) All appeals filed under sub-section (1) shall be heard by the benches to be constituted by the Chief Justice of the Lahore High Court, and shall be decided within a period of thirty days of their filing.

(3) No appeal or revision shall lie against an interim order or interlocutory order passed by the Tribunal.".

18. Substitution of section 20 of Act CI of 2025.– In the Act, for section 20, the following shall be substituted:

"**20. Prohibition of alienation.**– Any transaction involving alienation of the immovable property, which is the subject matter of the trial or any part thereof, whether by sale, lease, gift, exchange, settlement, surrender, usufructuary mortgage or otherwise, or any partition effected or a trust created, or by any mode of alienation, whatsoever, in respect of such immovable property, after filing of the complaint, shall

be prohibited and shall be deemed to be null and void, except to the extent permitted by an order of the Tribunal.".

19. Omission of sections 21 and 22 of Act CI of 2025.– In the Act, sections 21 and 22 shall be omitted.

20. Substitution of section 24 of Act CI of 2025.– In the Act, for section 24, the following shall be substituted:

"**24. Indemnity.**– No suit, prosecution or other legal proceeding shall lie against the Committee or any functionary or any agency or authority of the Government or officer or official acting under the Act or the rules for any act or thing done or intended to be done in good faith.".

21. Amendment of section 27 of Act CI of 2025.– In the Act:

(a) in the heading, after the word "**Repeal**", the words "**and saving**" shall be inserted;

(b) before the words "The Punjab Protection", the expression "(1)" shall be inserted; and

(c) after sub-section (1) as amended above, the following shall be added:

"(2) Notwithstanding the repeal under sub-section (1), anything done or any action taken under the repealed Ordinance shall be deemed to be done or taken under the Act.".

22. Repeal and saving.– (1) The Punjab Protection of Ownership of Immovable Property (Amendment) Ordinance 2026 (II of 2026) is hereby repealed.

(2) Anything done or any action taken under the repealed Ordinance shall be deemed to have been done or taken under the Act.

Ch Amer Habib
Secretary General